

11	Collison vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant KRC Santa Margarita, LLC's (KRC) Demurrer to Plaintiff's First Amended Complaint (FAC) is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put KRC on notice of the claims against it. Any additional factual detail may be obtained through discovery. The FAC alleges Defendants had repeated notice that Plaintiff was suffering from dementia, impaired judgment, worsening mobility, and an escalating risk of falls. (FAC, ¶¶ 13-16.) Despite repeated falls while inadequately supervised, repeated hospitalizations, repeated therapy recommendations, and repeated documentation demonstrating Plaintiff's deteriorating condition, Defendants failed to increase supervision, failed to modify Plaintiff's care plans, failed to implement appropriate fall interventions, and continued to expose Plaintiff to the same known dangers. (FAC, ¶¶ 17-63, 69-90). The FAC further alleges KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knew Plaintiff had suffered repeated falls, repeated hospitalizations, worsening cognition, worsening mobility, and increasing dependency. (FAC, ¶ 66.) Despite that knowledge, KRC's and Kisco's officers, directors, administrators, executive directors, regional managers, and/or managing agents knowingly ratified and approved the dangerous custodial practices by failing to take corrective measures. (FAC, ¶ 71.) These allegations are sufficient to plead elder abuse. (See <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-33; <i>White v. Ultramar, Inc.</i> (1999) 21 Cal.4th 563, 572-577.) Defendants are ORDERED to file an answer within 10 days. Clerk to give notice.
12	Paz vs. Clarke Law Medical Corp. 30-2025-01507092-CU-WT-CJC	Demurrer to Complaint Defendant Clarke Law Medical Corp.'s Demurrer to Plaintiff Mireya Paz's Complaint is CONTINUED to 8/14/2026 at 10:00 AM. Defendant's counsel filed a declaration stating Defendant is in the process of reviewing Plaintiff's proposed First Amended Complaint (FAC) and the parties are considering

		informal resolution of the matter. (ROA 48; Turner Decl., ¶¶ 2-5.) Plaintiff is ORDERED to file a joint stipulation regarding the filing of a FAC should the parties so stipulate no later than nine (9) court days before the hearing. Otherwise, Defendant is ORDERED to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will assume the issues have been resolved and take the demurrer off calendar. Moving Defendant to give notice.
13	Jin vs. PCH Auto LLC 30-2024-01437254-CU-BC-CJC	Motion for Summary Judgment/Adjudication The Motion for Summary Judgment/Adjudication by Defendant Mercedes-Benz Financial Services USA LLC as to the First Amended Complaint (FAC) of Plaintiffs Shengmin Jin and Skye Jin is GRANTED. Defendant's request for judicial notice is DENIED as unnecessary as to the operative complaint because the Court may consider the pleadings in this case. As to the Electronic Certificate of Title and Online Vehicle Reports, the request is GRANTED because the official DMV records including the registered and legal owners of the subject vehicle and lien and title information "are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452(h).) Here, Defendant has shown the documents reflect official DMV records and Plaintiffs do not demonstrate a genuine dispute as to the existence or accuracy of the DMV records. Defendant's objections to the declaration of Plaintiff Shengmin Jin (ROA 186) are OVERRULED. Request for Continuance Plaintiffs' request a continuance of the hearing to conduct further discovery under Code of Civil Procedure section 437c, subdivision (h) is DENIED. Plaintiffs' counsel does not submit a declaration explaining why they failed to conduct the necessary discovery since filing the complaint in November 2024, how and when they intend to conduct such discovery, or what they anticipate the discovery may reveal. Rather,